

Judgment Sheet

**IN THE PESHAWAR HIGH COURT, PESHAWAR
JUDICIAL DEPARTMENT**

Cr.Appeal No. 1216-P/2025

JUDGMENT

Date of hearing.....**24.06.2026**.....

Appellant. (Habib Ullah) By Mr. Akhtar Zaman, Advocate.

Respondents. (State) By Mr. Abdur Rauf Afridi, Additional Advocate
General and (Complainant) By Mr. Akbar Ali, Advocate.

ABDUL FAYAZ J.- Through the instant appeal filed under Section 410, Cr.P.C., the appellant, Habib Ullah son of Rehmat Ullah, has assailed the judgment dated 29.11.2025 passed by the learned Additional Sessions Judge-VII, Mardan, in case FIR No. 528 dated 30.06.2018, registered under Sections 302, 109 and 34 PPC at Police Station Jabbar, District Mardan; whereby, he was convicted under section 302(b), P.P.C. as Ta'zir for committing the Qatl-i-Amd of his wife, Mst. Ayesha, and was sentenced to imprisonment for life. He was further directed to pay compensation of Rs.400,000/- (Rupees Four Hundred Thousand only) to the legal heirs of the deceased under section 544-A, Cr.P.C.; in case of default, the said amount was ordered to be recovered as arrears of land revenue from the person and estate of the appellant and, if the same was not recoverable, he was to undergo simple imprisonment for a period

of six months. The appellant was also extended the benefit of section 382-B, Cr.P.C.

2. Briefly stated, the prosecution case as unfolded through FIR Ex.PB, lodged by complainant Wali Muhammad (PW-4), is that on 30.06.2018 at about 17:10 hours, his daughter Mst. Ayesha, who had been married to the appellant about two to three months prior to the occurrence, was done to death inside the house of the appellant by means of a sharp-edged weapon. The complainant reported that the appellant had murdered his daughter with a knife, while the co-accused (parents of the appellant) allegedly abetted the commission of the offence. Motive was stated to be family dispute. The occurrence was reported promptly; Murasila was prepared on the spot, dead body was shifted to DHQ Hospital, Mardan and post-mortem examination was conducted by Lady Dr. Syeda Nazish Sardar (PW-2). The prosecution alleged that the occurrence took place inside the matrimonial home and was later supported through medical, forensic and circumstantial evidence.

3. After registration of the case, investigation was initially conducted by Mira Khan, Investigating Officer. During investigation,

the place of occurrence was inspected; bloodstained earth, bloodstained clothes of the deceased and a bloodstained knife lying near the dead body were taken into possession through proper recovery memos. The recovered articles were sent to the Forensic Science Laboratory and the report received therefrom was positive. During the initial investigation, co-accused Rehman Ullah and Mst. Sabit Hawa were arrested and sent up for trial, whereas the present appellant absconded. Consequently, warrants under section 204 Cr.P.C and proclamation proceedings were initiated against him. The record further reveals that the appellant remained at large for a considerable period and was ultimately arrested after cancellation of his pre-arrest bail. Upon his arrest, supplementary investigation was conducted by Abdul Hakeem Khan (PW-5), who secured police custody of the appellant, prepared pointation memo and attempted to have his confessional statement recorded; however, the appellant declined to make any confession before the learned Magistrate. Supplementary challan against the appellant was submitted before the trial Court on 08.02.2025. He was produced before the Court on 15.03.2025 and copies as required under

section 265-C Cr.P.C were supplied. Formal charge under section 302 PPC was framed on 25.03.2025, to which he pleaded not guilty and claimed trial. The prosecution, in support of its case, examined seven witnesses and two additional formal witnesses. Upon closure of prosecution evidence, statement of the appellant under section 342 Cr.P.C was recorded wherein he denied the allegations but neither opted to appear as his own witness under section 340(2) Cr.P.C nor produced any defence evidence. After hearing the parties, learned trial Court vide judgment dated 29.11.2025 found the appellant guilty of committing Qatl-i-Amd of his wife and convicted him under section 302(b) PPC. Hence, the instant appeal.

4. We have heard learned counsel for the appellant, learned Additional Advocate General assisted by learned counsel for the complainant and have also gone through the record with their valuable assistance.

5. The prosecution case admittedly rests upon circumstantial evidence, there being no direct ocular account of the occurrence. It is, therefore, to be examined whether the circumstances proved by the prosecution form

such a complete and unbroken chain as to irresistibly point towards the guilt of the appellant and exclude every reasonable hypothesis consistent with his innocence.

6. The foremost and most incriminating circumstance, forming the foundation of the prosecution case, is that the deceased, Mst. Ayesha, met a homicidal death inside her matrimonial home. The record leaves no room for doubt that she was the legally wedded wife of the appellant and was residing with him in the matrimonial house at the relevant time. The medical evidence furnished by PW-2 unequivocally established that the deceased sustained a fatal incised injury on her neck resulting in excessive haemorrhage and death. The defence has not been able to dispute either the place of occurrence or the homicidal nature of the death. The significance of this circumstance cannot be overlooked. The occurrence having taken place within the confines of the matrimonial home, the appellant was the person best placed to explain the circumstances under which his wife suffered the fatal injuries. Although the burden of proving the charge always remains upon the prosecution, yet where certain facts are especially

within the knowledge of an accused, the law embodied in Article 122 of the Qanun-e-Shahadat Order, 1984, casts upon him the obligation of offering a plausible explanation regarding such facts. The learned trial Court has, in our view, rightly placed reliance upon *Saeed Ahmed v. The State* (2015 SCMR 710) and the principles subsequently reiterated by the august Supreme Court in *Waris Masih v. The State* (Jail Petition No.787 of 2018, decided on 21.01.2026), wherein it was held that where an unnatural death occurs within a house and the attending circumstances are especially within the knowledge of the accused, his failure to furnish a satisfactory explanation constitutes an additional link in the chain of incriminating circumstances.

7. In the instant case, the appellant has offered no explanation whatsoever regarding the death of his wife. In his statement recorded under section 342 Cr.P.C., he merely denied the prosecution allegations. He neither opted to appear as his own witness under section 340(2) Cr.P.C. nor produced any evidence in defence. The manner in which the deceased sustained the fatal injury inside the matrimonial home was a fact peculiarly within his knowledge. His silence in the

face of such a grave circumstance is not without legal consequence and, in the peculiar facts of the present case, constitutes an additional incriminating circumstance against him.

8. The prosecution has further succeeded in proving the recovery of bloodstained articles from the place of occurrence. The investigating officer secured bloodstained earth, bloodstained clothes of the deceased and a bloodstained knife from the scene and took the same into possession through duly prepared recovery memos. The recovered articles were transmitted to the Forensic Science Laboratory through a safe chain of custody and the forensic report returned positive results. The scientific evidence thus furnished independent corroboration to the prosecution version and lends further assurance to the truthfulness of the case set up by the prosecution.

9. Another important circumstance is the conduct of the appellant immediately after the occurrence. The record reveals that after the death of the deceased, the appellant absconded and remained at large for a considerable period. Proceedings had to be initiated to secure his arrest. Although abscondence by itself is not conclusive proof of guilt, yet it remains a relevant

circumstance which can legitimately be taken into consideration when examined in conjunction with the other evidence available on the record. In the present case, the conduct of the appellant in avoiding arrest immediately after the occurrence lends corroboration to the prosecution case.

10. The learned counsel for the appellant has emphasized that motive has not been independently proved. Even if such contention is accepted, it does not materially affect the prosecution case. It is by now well settled that motive is merely a corroborative circumstance and where the remaining evidence independently establishes the guilt of an accused, failure to prove motive is not fatal. In the present case, the prosecution case rests not upon motive but upon a series of proved circumstances which, when viewed collectively, lead to only one conclusion.

11. The cumulative effect of the evidence brought on record establishes: (i) the homicidal death of the deceased inside the matrimonial home; (ii) the admitted fact that the deceased was residing with the appellant immediately before the occurrence; (iii) the recovery of bloodstained incriminating articles from the scene of crime; (iv) the positive forensic evidence corroborating the

prosecution version; (v) the appellant's failure to explain the circumstances in which his wife met an unnatural death despite such facts being especially within his knowledge; and (vi) his subsequent abscondence after the occurrence. When these circumstances are examined together and not in isolation, they form a complete and coherent chain of evidence. Each circumstance stands independently established and all the circumstances, when linked together, point unerringly towards the guilt of the appellant. No plausible explanation has been offered by the defence to break this chain or to create any reasonable doubt in the prosecution case. The circumstances proved on record are wholly inconsistent with the innocence of the appellant and exclude every reasonable hypothesis except that of his guilt. The learned trial Court has appreciated the evidence in its true perspective and has correctly applied the settled principles governing cases based upon circumstantial evidence. The reliance placed by the learned trial Court upon *Saeed Ahmed v. The State* (2015 SCMR 710) and the principles reiterated in *Waris Masih v. The State* (Jail Petition No.787 of 2018, decided on 21.01.2026) is fully justified in the

facts and circumstances of the present case. We have not been able to notice any misreading, non-reading, illegality or perversity in the impugned judgment warranting interference by this Court.

12. Consequently, we are of the considered view that the prosecution has successfully proved its case against the appellant beyond reasonable doubt. The conviction and sentence recorded by the learned trial Court, therefore, call for no interference and are hereby maintained. The appeal, being devoid of merit, is dismissed.

Announced:

24.06.2026

Abdur Rahim CO

J U D G E

J U D G E

*Hon'ble Mr. Justice Sahibzada Assadullah
Hon'ble Mr. Justice Abdul Fayaz*